

**APPROVED ON SEPTEMBER 30, 2026
BY THE BOARD OF COUNTY COMMISSIONERS
AT THE WEEKLY BUSINESS SESSION**

**Legal Counsel Update: September 24, 2026
10:00 a.m. – Board of Commissioners Conference Room**

Attending: Commissioners Ron A. Smith and Gary L. Richardson; Wally Hicks, Legal Counsel; Leah Harper, Assistant Legal Counsel; and Nikole Guzman, Recorder. Commissioner Colene M. Martin was absent.

Legal Counsel Update

1. Declaration of Potential Conflicts of Interest

Commissioners Richardson and Smith each declared no potential conflicts of interest. Commissioner Martin was absent and did not participate in the meeting.

2. Approval to increase spending limit for Snell Wilmer (surplus proceeds litigation)

Wally Hicks, Legal Counsel, reported that the surplus-proceeds litigation being defended by Snell Wilmer had settled the preceding day. To conclude outstanding legal billing, he recommended that the Board authorize a spending limit of \$40,000 for legal services during July through September 2026. Counsel explained that invoices were still being compiled and that this amount was an authorized ceiling rather than an accounting of expenses already incurred. He advised that the limit was needed for Finance to process the remaining invoices.

With the two Commissioners present and without objection, the Board approved the \$40,000 spending limit for Snell Wilmer and directed that the authorization be communicated to Finance.

3. RFP for contracted attorney services

Wally Hicks presented a proposed Request for Proposals (RFP) for contracted attorney services in anticipation of Assistant Legal Counsel Leah Harper's upcoming retirement. He proposed sending an inquiry statewide to selected law firms and other legal-service providers to evaluate options for obtaining general county counsel support and specialized expertise on an as-needed or retainer basis. Hicks stated that a contracted approach could provide cost savings and allow the County to draw upon different legal specialties. Commissioner Richardson discussed his experience with a similar retainer arrangement at the school district and supported exploring multiple specialized providers as appropriate. Counsel indicated that responses would be brought back to the Board for review before any firm or contract was selected. The Board also thanked Harper for her service and briefly discussed whether she might be available for limited contract assistance on unfinished matters after her retirement and a vacation; no such arrangement was approved.

The Commissioners present expressed support for proceeding with the RFP process. No formal motion was made and no contract or provider was approved at this meeting.

4. Executive Session - Postponed**1. Stephen Eric Fitch v. Josephine County, et al; District Court Case 1-26-cv-01406 - ORS 192.660(2)(h)**

Deferred to the rescheduled meeting on Tuesday, September 29, 2026, at 11:00 a.m., when the attorneys were expected to be available. Legal Counsel noted that questions had already been forwarded and that additional questions could be submitted in advance. No Executive Session discussion took place.

2. Court Security Advisory Committee update – ORS 192.660(2)(f) & 192.345(23)

Deferred because the presenter and other key participants were unavailable. A new date was not established during this meeting.

Deferred Agenda Items**5. Stephen Eric Fitch v. Josephine County, et al; District Court Case 1-26-cv-01406**

The Board remained in Open Session throughout the meeting. This item was deferred to the rescheduled legal discussion; no direction or final action was taken on the Fitch matter.

6. Court Security Advisory Committee update

The update was postponed pending the availability of the necessary participants. No formal action was taken.

7. Additional Subjects/Matters from Commissioners – ORS 192.640(1)

No additional matters were raised.

There being no further business, the Legal Counsel Update adjourned at 10:10 a.m.